EVOLUTION

The concept of rights is nothing new and its genesis can be traced to the philosophical foundations of the liberal democratic tradition in Europe, especially in Great Britain, France and also the United States. Human rights got philosophical treatment in the works of Thoreau* in his treatise, *Civil Disobedience,* of the English Philosopher John Stuart Mill, in his essay *On Liberty* (1859), and of the American Political theorist Thomas Paine in his essay, *The Rights of Man* (1791). But before that the Reformation and the Age of Reason (Renaissance), the Puritan Revolution and the Glorious Revolution of the seventeenth century also saw contributions of philosophers to the issue of rights of man in the works of Hobbes in his *Leviathan* (1651), Locke in his *Two Treatises on Government* (1689), and Rousseau in his *Contract Sociale* (1762) through his notion of *vox populi* or *General Will.* The ideas expounded by these philosophers to a great extent influenced the formulation of human rights documents, declarations, conventions and treaties at international, national and regional levels.

One of the earliest documents on human rights was the *Magna Carta*, which was forced on King John in 1215 by the English Barons. The *Magna Carta* embodied such principles as trial by jury of peers, an end to feudal forced labour, no confiscation of property without compensation, equality of all before the law, and the right to free migration. It established the right of widows who owned property to choose not to remarry and the principles of due process. It also contained provisions forbidding bribery and official misconduct.[2]

Almost a century later, in 1776, most of the British colonies in North America, which proclaimed their independence from the British Empire in the document, “The American Declaration of Independence”, said, with reference to natural rights, that “We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable rights, that among these are life, liberty and the pursuit of happiness”. It further enumerated, “that to secure these rights Governments are instituted among men deriving their just powers from the consent of